IN THE CIRCUIT COURT OF THE SIXTEENTH JUDICIAL CIRCUIT IN AND FOR MONROE COUNTY, FLORIDA

ADMINISTRATIVE ORDER 2.069

IN RE:

PROHIBITION ON USE OF CELLULAR TELEPHONES AND PERSONAL COMMUNICATION DEVICES IN THE COURTROOM

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WHEREAS, the Chief Judge is responsible for the administration of the courts within the Sixteenth Judicial Circuit, as provided for in Florida Rules of Judicial Administration 2.215; and

WHEREAS, there is a desire on the part of the judiciary of the Sixteenth Judicial Circuit to create a uniform policy regarding the use of personal communication devices in courthouse facilities throughout the circuit;

NOW, THEREFORE, it is **ORDERED** as follows:

1. No person shall use audible pagers, cellular telephones or any other personal communication devices in any courtroom, hearing room or chambers during court proceedings in the Sixteenth Judicial Circuit.
2. All audible pagers, cellular telephones and other personal communication devices must be in the off position during all court proceedings in the Sixteenth Judicial Circuit.
3. This order shall not limit the authority of the presiding judge to make such limited exceptions to this order as are appropriate and necessary, in his or her discretion, on a case by case basis.

4. Violation of this order may subject the offender to contempt of court and may also result in the confiscation of any such devices in order to facilitate the orderly administration of justice without undue interruption.

5. This order shall take effect immediately upon execution.

DONE AND ORDERED at Plantation Key, Monroe County, Florida, this 1st day of October, 2010.

Luis Garcia
Chief Judge